

Bhim Dev & Anr vs State Of H.P.& Anr on 9 July, 2025

Author: Virender Singh

Bench: Virender Singh

1

IN THE HIGH COURT OF HIMACHAL PRADESH AT SHIMLA

Cr. MM0 No. 262 of 2025

Decided on : 9.7.2025

Bhim Dev & anr.

...Petitioners

Versus

State of H.P.& anr.

...Respondents

Coram

Hon'ble Mr. Justice Virender Singh, Judge

Whether approved for reporting?

For the Petitioners : Petitioners in person with
 Ms. Kiran Lata Negi,
 Advocate.

For the Respondents :Mr. Tejasvi Sharma, Add.
 A.G., for respondent No. 1.

Respondent No. 2 in person

with Ms. Pooja Thakur,
Advocate.

Virender Singh, Judge (oral)

Petitioners have filed the present petition, under Section 528 of the Bhartiya Nagarik Suraksha Sanhita (hereinafter referred to as 'the BNSS') seeking quashing of FIR No. 27 of 2022, dated 13.7.2022, (hereinafter referred to as 'the FIR in question'), registered under Sections 498-A, 323, 325 and 34 of the Indian Penal Code (hereinafter referred to as 'the IPC') with .

Women Police Station, Mandi, District Mandi, H.P., as well as, the proceedings resultant thereto, pending in the Court of learned Judicial Magistrate First Class, Court No. 2, Mandi, District Mandi, H.P., (hereinafter referred to as 'the trial Court'), in view of the compromise, having been effected, between the petitioners and respondent No. 2.

2. According to the petitioners, FIR in question was registered against them, at the instance of respondent No. 2, due to matrimonial dispute, having been arisen between petitioner No. 1 and respondent No. 2.

3. After registration of the FIR, the criminal machinery swung into motion. After completion of the investigation, report under Section 173(2) of Cr. P.C. was submitted in the learned trial Court.

4. During the pendency of the case, before learned trial Court, the parties have settled the matter. As per settlement, petitioner No. 1 and respondent No. 2 have decided to part their ways and their marriage was dissolved by petition, under Section 13-B of Hindu Marriage Act.

5. On the basis of above, a prayer has been made to .

allow the present petition.

6. Vide judgment and decree, dated 18.10.2024, matter has now been compromised between the petitioner and respondent No. 2.

7. When put to notice, respondent No. 1 has filed the status report, disclosing therein the manner, in which, the FIR in question has been registered and the Police has investigated the matter and submitted report under Section 173(2) Cr. P.C., before the learned trial Court.

8. Today, the person, who, at one point of time, had levelled the allegations, against the petitioners, i.e. respondent No. 2, appeared and stated, on oath, that she was married to petitioner No. 1 and thereafter, dispute had arisen between them, due to matrimonial discord.

Thereafter, according to her, she had lodged FIR against the petitioners, in which, police has conducted the investigation and submitted the report under Section 173(2) of the Cr. P.C., which is pending before the learned trial Court.

9. According to respondent No. 2, she and petitioner No. 1 have decided to part their ways, as such, she and petitioner No. 1 had filed petition under Section 13-B of .

the Hindu Marriage Act, before the Court of learned Addl.

Principal Judge, Family Court, Sundernagar, District Mandi, H.P., and their marriage has been dissolved vide judgment and decree, dated 18.10.2024, vide Ext. P-A. She has further deposed on oath that since the matter has been settled between her and petitioner No. 1, as such, she has no claim whatsoever with regard to his past, present and future maintenance.

10. On the basis of compromise, Ext. PA, she has categorically stated that she has no objection, in case, the FIR in question, as well as, proceedings resultant thereto, pending before the learned trial Court, are quashed.

11. Similar type of statements have also been made by the petitioners, in which, they have also reiterated the terms and conditions of the compromise, Ext. P-A.

12. On the basis of statements, so made by the petitioners, they have sought the relief, as claimed, in the petition.

13. Heard.

14. As per the stand taken by the parties, petitioner No. 1 and respondent No. 2 got married to each other, but compelled by the circumstances, they are litigating with .

each other. However, when it was not possible for them to live together, as husband-wife, they dissolved their marriage, by way of their mutual consent. Apart from dissolving their marriage, they have settled all the inter se disputes, vide compromise Ext.P-A. Thus, this Court is satisfied with the genuineness of the compromise.

15. Parties to the present lis, i.e. petitioner No. 1 and respondent No. 2 have settled the inter se disputes having been arisen between them, by dissolving their marriage.

The compromise is Ext. P-A, according to which, the parties have settled all their disputes and bound themselves by the same. As such, continuation of proceedings, before the learned trial Court is nothing, but, the abuse of process of law.

16. When, the aggrieved wife, who had put the criminal machinery into motion, by lodging the FIR, against her husband (petitioner No. 1), and mother-in-law (petitioner No. 2), has settled the matter with the petitioners, that too, by dissolving the marriage with petitioner No. 1, then, chances of success of prosecution case, in this case, are not so bright.

17. Acceptance of the compromise will also save the .

precious judicial time of the learned trial Court, as the learned trial Court will be in a position to devote such time, for deciding some other serious disputes, pending before it.

18. Considering all these facts, the present petition is allowed and FIR No. 27 of 2022, dated 13.7.2022, registered under Sections 498-A, 323, 325 and 34 of the IPC, with Women Police Station, Mandi, District Mandi, H.P. and the proceedings resultant thereto, pending before the learned trial Court, are quashed.

19. The statements, so recorded, before this Court, as well as, compromise Ext. PA, shall form part of the judgment.

20. The present petition is allowed in the aforesaid terms. Pending miscellaneous application(s), if any, also stands disposed of.

(Virender Singh) Judge July 9, 2025 Kalpana